

Law & Motion

2. 9:00 AM CASE NUMBER: L22-04445
CASE NAME: GALT ADVOCACY, LLC VS. KENDRA SULLIVAN
MTN TO SET ASIDE JUDGMENT FILED BY DEF. ON 04/01/2026
FILED BY: SULLIVAN, KENDRA
***TENTATIVE RULING**

Defendant has filed a Motion to Set Aside Judgment. The Motion is unopposed, however, there is no evidence to suggest that Defendant served Plaintiff with notice of the Motion of the hearing.

Disposition

This Motion will be continued to 9/6/26, 9am.

Court will draw Order.

Defendant to notify Plaintiff of Motion and hearing.

3. 9:00 AM CASE NUMBER: L23-00923
CASE NAME: CREDITORS ADJUSTMENT BUREAU, INC. VS. DOUGLAS FATANI
MOTION FOR ORD ATTACH THE SPOUSAL WAGE EARNINGS & OTHER ASSETS OF EVA I. AHOKOVI
FILED BY PLTF. ON 03/25/2026
FILED BY:
TENTATIVE RULING:

Plaintiff has filed a Motion to attach to the spousal earning of Eva Aholkovi.

The Motion is unopposed.

Plaintiff mailed notice of the Motion and hearing to an address for Defendant and Ms. Aholkovi at an address where Defendant was personally served with process.

Background

On 11/14/23, Notice of Entry of Judgment was filed in Contra Costa County, reflecting a money judgment after default against Defendant.

Plaintiff, in the exhibits to their Motion, provided evidence that Ms. Aholkovi is the spouse of Defendant. Exhibit One reflected an auto loan application in which both Defendant and Ms. Aholkovi applied as co-applicants and listed the same residential address and indicated they were the homeowner. Exhibit Two reflects an online search indicating that the two parties are married.

Analysis

Section 910 of the Family Code renders the community estate liable for the debt incurred by a spouse during marriage. Section 695.020 of the Code of Civil Procedure merely reinforces that this principle is applicable in civil matters, stating that "Community property is subject to enforcement of a money

judgment as provided in the Family Code.” Finally, it does not appear that the judgment creditor must join the spouse of a judgment debtor to the underlying lawsuit. Section 706.109 of the Code of Civil Procedure only requires a noticed motion.

By a preponderance of the evidence, this court finds that Ms. Aholkovi was properly noticed of this Motion. What’s more, this court finds that Ms. Aholkovi is the spouse of Defendant, and that her earnings are properly subject to attachment as community property.

Disposition

Plaintiff’s Motion is granted.

Plaintiff to file Order and provide notice of Order to Defendant.

**4. 9:00 AM CASE NUMBER: L24-03277
CASE NAME: WELLS FARGO BANK, N.A. VS. JUAN CANJURA**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,682.46, plus costs, and less any credits for payments received.